

WATER FACILITIES AUTHORITY

Project: Benson Avenue Butterfly and Gate Valve Replacement Project (aka City of Chino Valve Replacement Project)

1. **Parties and Date.** This Agreement is made and entered into this **16 day of November, 2023**, by and between Water Facilities Authority, a public agency organized and operating under the laws of the State of California with its principal place of business at 1775 North Benson Avenue, Upland, California 91784 ("Authority"), and **C.P. Construction Co., Inc.**, a California corporation with its principal place of business at Upland, CA ("Vendor"). Authority and Vendor are at times individually referred to herein as "Party" and collectively as "Parties."
2. **Terms and Conditions.** The Parties shall comply with the Terms and Conditions attached hereto as Exhibit "A" and incorporated herein by this reference.
3. **Scope of Services; Schedule.** Vendor shall be solely responsible for providing all materials, labor, tools, equipment, water, light, power, transportation, and superintendence of every nature and all other services and all facilities necessary to execute, complete, and deliver the services as particularly described in the Scope of Services (the "Services") attached hereto as Exhibit "B" and incorporated herein by this reference. The Services shall be completed timely and in accordance with Exhibit "B".
4. **Term.** The term of this Agreement shall be from the execution of this agreement through February 28, 2024, unless earlier terminated as provided herein. If the work is not completed by February 28, 2024, Vendor shall be assessed \$300 per calendar day until the work is complete.

Compensation. Vendor shall receive compensation for Services rendered under this Agreement at the lump sum amount set forth in Exhibit "B" attached hereto and incorporated herein by this reference. The total compensation shall not exceed the amount of **\$62,590**.

Vendor's invoices shall include a detailed description of the Services performed, including a cost breakdown by task, associated hours, dates worked, and shall include the current monthly amount and the cumulative amount invoiced to date. Invoices shall be submitted to Authority on a monthly basis. Authority shall review and pay all non-disputed and approved charges on such invoices in a timely manner. Vendor shall submit its final invoice to Authority within thirty (30) days from the last date of Services performed, and failure to do so shall result in a waiver of payment from Authority. Vendor will not be compensated for any services rendered in excess of the authorized not-to-exceed lump sum amount indicated in Exhibit "B", unless approved in writing in advance by the General Manager of the Authority.

5. **Insurance.** In accordance with Section 3 of the Terms and Conditions, Vendor shall, at its expense, procure and maintain for the duration of the Agreement such insurance policies as checked below and provide proof of such insurance policies in a form satisfactory to Authority.

Commercial General Liability Insurance:

- ☒ \$1,000,000 per occurrence/\$2,000,000 aggregate.
- ☐ \$2,000,000 per occurrence/\$4,000,000 aggregate.

Automobile Liability:

☒ \$1,000,000 combined single limit for bodily injury and property damage.

Workers' Compensation:

☒ Statutory Limits / Employer's Liability \$1,000,000 per accident or disease and a waiver of subrogation in favor of the Authority, its officers, agents, employees and volunteers.

Professional Liability (Errors and Omissions):

☐ Errors & Omissions liability insurance with a limit of not less than \$1,000,000 per claim and in the aggregate.

Evidence of all insurance coverage required herein, including but not limited to copies of policies, shall be provided to Authority prior to beginning work. Such policies shall provide that they shall not be canceled nor the scope or amount of coverage reduced without 30 days prior written notice to Authority. Cancellation or reduction in amounts of coverage of insurance policies without Authority's prior written consent shall constitute a material breach of this Agreement.

6. **Obligations of Vendor.** Vendor agrees to perform all assigned tasks and services in accordance with the terms and conditions of this Agreement and those specified in the Vendor's Scope of Work. Except as otherwise provided, Vendor will supply all personnel and equipment required to perform the assigned services.

8. **Independent Contractor.** It is understood by the parties that Vendor is an independent contractor with respect to the Authority and not an employee of Authority. The Services shall be performed by Vendor or under its supervision. Vendor will determine the means, methods and details of performing the Services subject to the requirements of this Agreement. Vendor retains the right to perform similar or different services for other during the term of this Agreement. Any additional personnel performing the Services under this Agreement on behalf of Vendor shall also not be employees of Authority and shall at times be under Vendor's exclusive direction and control. Authority will not provide fringe benefits, including health insurance, paid vacation, or any other employee benefits, for the Vendor. Vendor hereby agrees to be solely responsible for the health and safety of its employees and agents in performing the tasks and services assigned by Authority.

**SIGNATURE PAGE TO
WATER FACILITIES AUTHORITY**

IN WITNESS WHEREOF, each of the Parties has caused this Agreement to be executed on the day and year first above written.

WATER FACILITIES AUTHORITY

CP Construction Co, Inc.

By: _____

Van M. Jew

General Manager

By: _____



Printed Name: John Blough.

Title: Secretary.

Attest: _____

Eunice Ulloa

Secretary, Board of Directors

Approved as to Form:



Holland Stewart

Best Best & Krieger LLP

General Counsel, Authority

1. Compliance with Law. Vendor shall comply with all applicable laws and regulations of the federal, state and local government. Vendor certifies that it fully complies with all requirements and restrictions of state and federal law respecting the employment of undocumented aliens, including, but not limited to, the Immigration Reform and Control Act of 1986, as may be amended from time to time. By its signature hereunder, Vendor certifies that it is aware of the provisions of Section 3700 of the California Labor Code which require every employer to be insured against liability for Workers' Compensation or to undertake self-insurance in accordance with the provisions of that Code, and agrees to comply with such provisions before commencing the performance of the Services. Vendor represents that it is an equal opportunity employer and it shall not discriminate against any subcontractor, employee or applicant for employment in violation of state or federal law. Vendor is aware of the requirements of California Labor Code Sections 1720 et seq. and 1770 et seq. ("Prevailing Wage Laws"), which require the payment of prevailing wage rates and the performance of other requirements on certain "public works" and "maintenance" projects. If the work is being performed as part of an applicable "public works" or "maintenance" project, as defined by the Prevailing Wage Laws, and if the total compensation is \$1,000 or more, Vendor agrees to fully comply with such Prevailing Wage Laws, including, along with subcontractors, being registered with the Department of Industrial Relations (Labor Code §§ 1725.1; 1771.1). It shall be mandatory upon the Vendor and all subcontractors to comply with all California Labor Code provisions, which include but are not limited to prevailing wages (Labor Code §§ 1771; 1774; 1775), employment of apprentices (Labor Code § 1777.5), certified payroll records (Labor Code §§ 1771.4; 1776), hours of labor (Labor Code §§ 1813; 1815) and debarment of contractors and subcontractors (Labor Code § 1777.1). This Agreement may be subject to compliance monitoring and enforcement.

2. Standard of Care. The Vendor shall perform the Services in accordance with generally accepted professional practices and principles and in a manner consistent with the level of care and skill ordinarily exercised by members of the profession practicing under similar conditions.

3. Insurance. If required by Section 6 of this Agreement, the Vendor shall take out and maintain during this Agreement: A. Commercial General Liability Insurance for bodily injury, personal injury and property damage, at least as broad as Insurance Services Office Commercial General Liability coverage (Occurrence Form CG 0001); B. Automobile Liability Insurance for bodily injury and property damage including coverage for owned, non-owned and hired vehicles, at least as broad as Insurance Services Office Form Number CA 0001 (ed. 10/13) covering automobile liability, Code 1 (any auto); C. Workers' Compensation; and D. Professional Liability (Errors and Omissions) coverage for a term acceptable to the Authority. Insurance carriers shall be licensed and authorized to do business in California. Such insurance carrier shall have not less than an "A:VII" rating according to the latest Best Key Rating unless otherwise approved by Authority. Vendor shall add Authority, its officers, officials, employees, agents, and volunteers as additional insureds on Vendor's Commercial General Liability and Automobile Liability. Coverage provided by Vendor shall be primary and any insurance or self-insurance procured or maintained by Authority shall not be required to contribute with it.

4. Indemnification. To the fullest extent permitted by law, Vendor shall defend (with counsel of Authority's choosing), indemnify and hold the Authority, its officials, officers, employees, volunteers, and agents free and harmless from any and all claims, demands, causes of action, costs, expenses, liability, loss, damage or injury of any kind, in law or equity, to property or persons, including wrongful death (collectively, "Claims"), in any manner arising out of, pertaining to, or incident to any acts, errors or omissions, or willful misconduct of Vendor, its officials, officers, employees, subcontractors, consultants or agents in connection with the performance of the Vendor's Services, the project, or this Agreement, including without limitation the payment of all expert witness fees, attorney's fees and other related costs and expenses except such loss or damage caused by the sole negligence or willful misconduct of the Authority. Vendor's obligation to indemnify shall survive expiration or

termination of this Agreement and shall not be restricted to insurance proceeds, if any, received by Vendor or the Authority, its officials, officers, employees, agents, or volunteers. If Vendor's obligation to defend, indemnify, and/or hold harmless arises out of Vendor's performance as a "design professional" (as that term is defined under Civil Code § 2782.8), then, and only to the extent required by Civil Code § 2782.8, which is fully incorporated herein, Vendor's indemnification obligation shall be limited to claims that arise out of, pertain to, or relate to the negligence, recklessness, or willful misconduct of the Vendor, and, upon Vendor obtaining a final adjudication by a court of competent jurisdiction, Vendor's liability for such claim, including the cost to defend, shall not exceed the Vendor's proportionate percentage of fault.

5. Laws; Venue. This Agreement shall be interpreted in accordance with the laws of the State of California. If any action is brought to interpret or enforce any term of this Agreement, the action shall be brought in a state or federal court situated in the County of Riverside, State of California.

6. Termination. Authority may terminate the whole or any part of this Agreement for any or no reason by giving three (3) calendar days written notice to Vendor. In such event, Authority shall be immediately given title and possession to all original field notes, drawings and specifications, written reports and other documents produced or developed for the work. Authority shall pay Vendor the reasonable value as determined by Authority of any portion of the Services completed prior to termination. Authority shall not be liable for any costs other than the charges or portions thereof which are specified herein. Vendor shall not be entitled to payment for unperformed Services and shall not be entitled to damages or compensation for termination of the Services. Vendor may terminate its obligation to provide further work under this Agreement upon thirty (30) calendar days written notice to Authority only in the event of Authority's failure to perform in accordance with the terms of this Agreement through no fault of Vendor.

7. Changes. By written notice, Authority may from time to time, make changes to the Services furnished to Authority by Vendor. If such change causes an increase or decrease in the Agreement Price or in the time required for performance, Vendor or Authority shall promptly notify the other party thereof and assert its claim for adjustment within fifteen (15) days after the change is ordered, and an equitable adjustment shall be made. However, nothing in this clause shall excuse the Vendor from proceeding immediately with the Agreement as changed.

8. Miscellaneous Terms. Vendor shall not assign, sublet, or transfer this Agreement or any rights under or interest in this Agreement without the written consent of the Authority. This Agreement may not be modified or altered except in writing signed by the Parties. There are no intended third-party beneficiaries of any right or obligation of the Parties. This is an integrated Agreement representing the entire understanding of the Parties as to those matters contained herein, and supersedes and cancels any prior oral or written understanding or representations with respect to matters covered hereunder. The captions of the various paragraphs are for convenience and ease of reference only, and do not define, limit, augment, or describe the scope, content or intent of this Agreement. The unenforceability, invalidity or illegality of any provision(s) of this Agreement shall not render the other provisions unenforceable, invalid or illegal. Notice may be given or delivered by depositing the same in any United States Post Office, certified mail, return receipt requested, postage prepaid, addressed to the Parties to the addresses set forth in this Agreement. Vendor is retained as an independent contractor and is not an employee of the Authority. No employee or agent of Vendor shall become an employee of Authority. Vendor warrants that the individual who has signed this Agreement has the legal power, right and authority to make this Agreement and bind the Vendor hereto.

EXHIBIT “B”

REQUEST FOR QUOTE

PROJECT IDENTIFICATION: BENSON AVENUE BUTTERFLY AND GATE VALVE REPLACEMENT PROJECT

Name of Bidder C.P. Construction Co., Inc.

ITEM DESCRIPTION	UNIT OF MEASURE
• Replace a cluster of three valves located on Benson Avenue in the City of Montclair just north of the 10-freeway. The work will include supplying and replacing ONE 20-inch butterfly valve, ONE 6-inch gate valve and ONE 2-inch gate valve. • Contractor will be responsible for asphalt removal, excavation, spoils disposal, dewatering of the line with the help of the Authority's staff operating valves, disinfection to the AMMA standard C651-14, charging the line with the help of the Authority's staff operating valves, and replacement of the permanent asphalt. • The contractor will need to acquire encroachment permit from local City agency, prepare traffic control plans, and provide traffic control - Work under this item shall include obtaining City approval to work in the public right-of-way and may include preparing and submitting traffic control plans signed and stamped plans by a licensed engineer. Work shall also include implementing the approved traffic control plan. • The work will be performed in the month of January or February.	Lump Sum

Bid Amount: \$62,590.00

Sixty Two Thousand Five Hundred Ninety Dollars and Zero Cents.

Water Facilities Authority - Benson Ave Butterfly and Gate Valve Replacement Project

C.P. Construction Co., Inc.

P.O. Box 1206, Ontario, CA 91762

CA #304794, 'A', C12, C34 & C42.

Bid Dated 10/19/2023

Items to be considered in preparing quote:

- Valve Records (attached)
- Pipeline Drawing Sheets C-12 and C-13 (attached)
- Gate Valve Standard (attached)
- Valve Specs (attached)
- WFA's sample agreement (attached)
- City of Montclair's paving standards (see City website)

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VALVE RECORD

VALVE NO. CHN/MV-02

Principal Street BENSON AVE FT. of SEE SKETCH BELOW
 Intersecting Street SAN BERNARDINO FWY (I-10) FT. of SEE SKETCH BELOW
 Size 20 - INCHES Make PRATT VALVE COMPANY Normal Operation OPEN Turns to Operate 9 1/2
 Date Set 1987 Type BUTTERFLY VALVE Function MAIN ISOLATION Seal Type RUBBER Depth to Nut 3-FEET
 Wormgear Actuator LIMITORQUE T - 160 Ratio 136 : 1 Rated Input Torque 134 Ft - Lb Maximum Wrench Nut Input 391 Ft - Lb

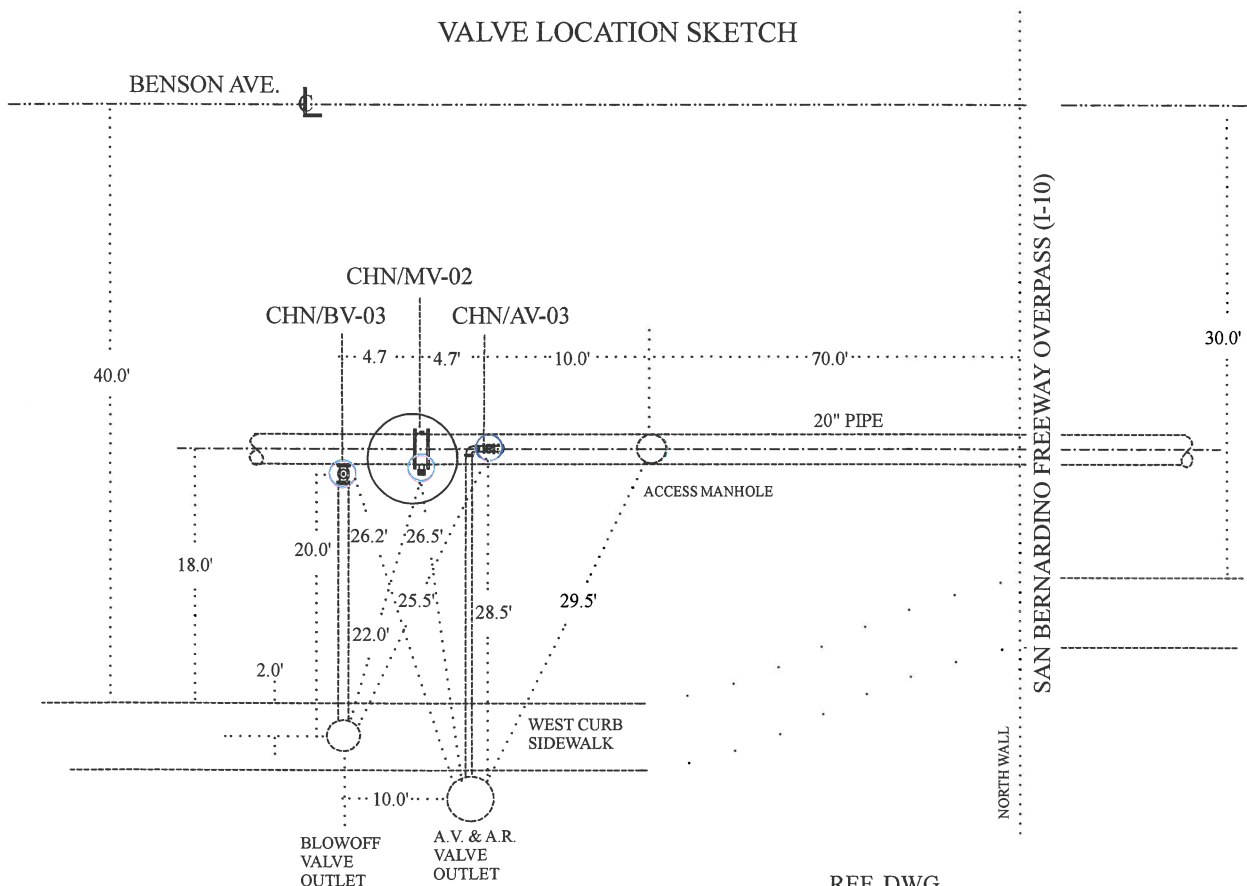
Notes: CLASS 150 BUTTERFLY VALVE EQUIPPED WITH LIMITORQUE WORMGEAR ACTUATOR.

DO NOT EXCEED RATED INPUT TORQUE MORE THAN 10% !!!

MAINTENANCE AND INSPECTION RECORD

DATE	WORK DONE	BY	REMARKS
3 - 6 - 91	VALVE EXERCISED OPEN/CLOSE	BERNIE/STEVE	
3 - 14 - 01	VALVE EXERCISED OPEN/CLOSE	CHINO/JAKE	
2 - 10 - 05	VALVE EXERCISED OPEN/CLOSE	CHINO/ED	NORMAL ROTATION OF VALVE OPERATOR (asphalt inside valve-can not removed)
2 - 06 - 07	VALVE EXERCISED OPEN/CLOSE	CHINO/MEL	NORMAL ROTATION OF VALVE OPERATOR

VALVE LOCATION SKETCH



REF. DWG.
DISTRIBUTION PIPELINE SHEET NO. C-13

VALVE NO. CHN/BV-03

Notes: FLANGE-END CONNECTION AND PRESSURE RATED AT 200 PSI. COMPRESSION RESILIENT SEATED TYPE.
TORQUE RATINGS NOT AVAILABLE ON THE TECHNICAL SPECIFICATIONS.

[illegible]

VALVE LOCATION SKETCH

BENSON AVE.

CHN/MV-02

CHN/BV-03

CHN/AV-03

20" PIPE

ACCESS MANHOLE

WEST CURB SIDEWALK

BLOWOFF VALVE OUTLET

A.V. & A.R. VALVE OUTLET

SAN BERNARDINO FREEWAY OVERPASS (I-10)

NORTH WALL

REF DWG.

DISTRIBUTION PIPELINE SHEET NO. C-13

VALVE NO. CHN/AV-03

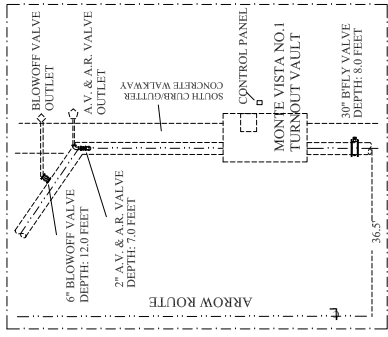
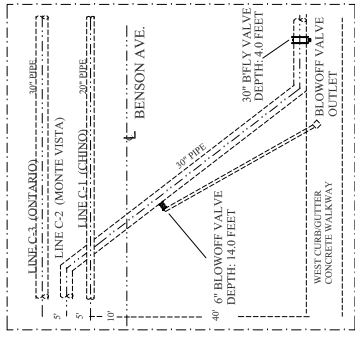
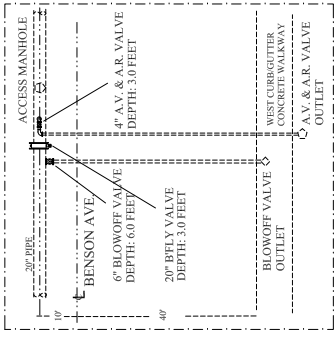
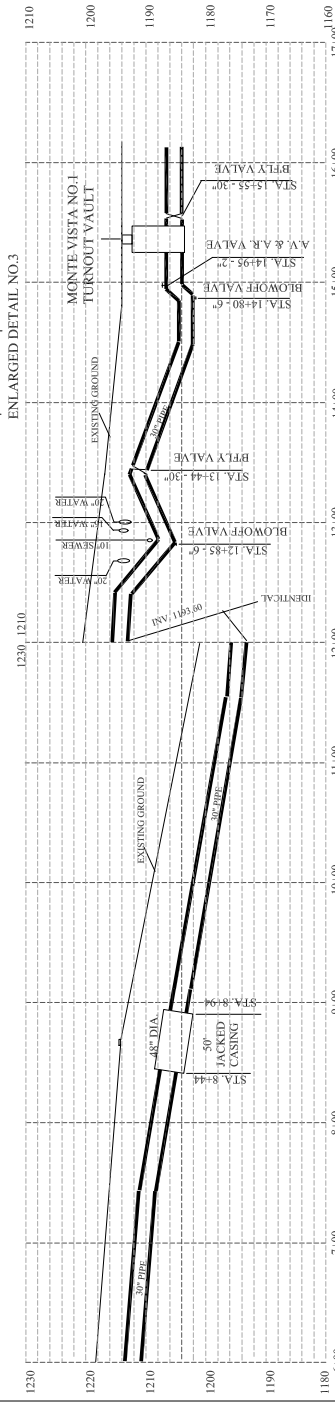
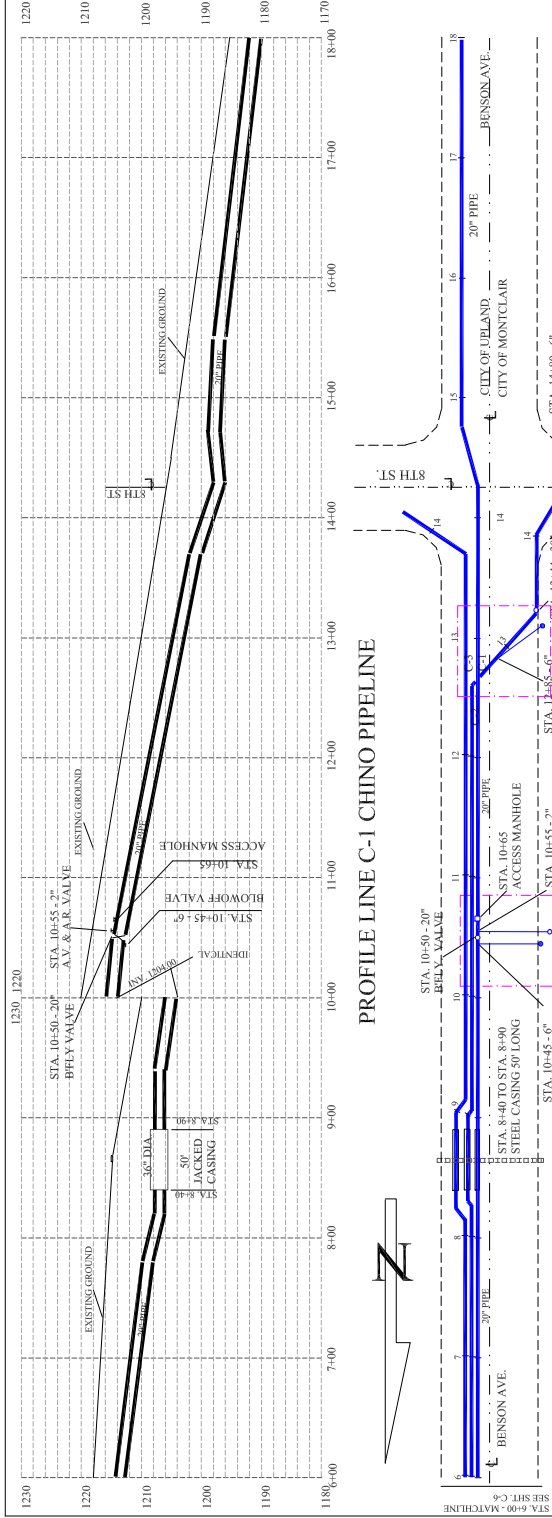
Principal Street	BENSON AVE						FT. of	SEE SKETCH BELOW	
Intersecting Street	SAN BERNARDINO FWY (I-10)						FT. of	SEE SKETCH BELOW	
Size	2 - INCHES	Make	AMERICAN DARLING VALVE		Normal Operation	OPEN	Turns to Operate	14 1/2	
Date Set	1987	Type	CRS-80 GATE VALVE	Function	AIR & VACUUM RELIEF	Seal Type	O-RING	Depth to Nut	3-FEET
Wormgear Actuator	NOTE (SCREW-STEM)		Ratio	N/A	Rated Input Torque	N/A	Maximum Wrench Nut Torque	N/A	

Remarks	FLANGE-END CONNECTION AND PRESSURE RATED AT 200 PSI. COMPRESSION RESILIENT SEATED TYPE.
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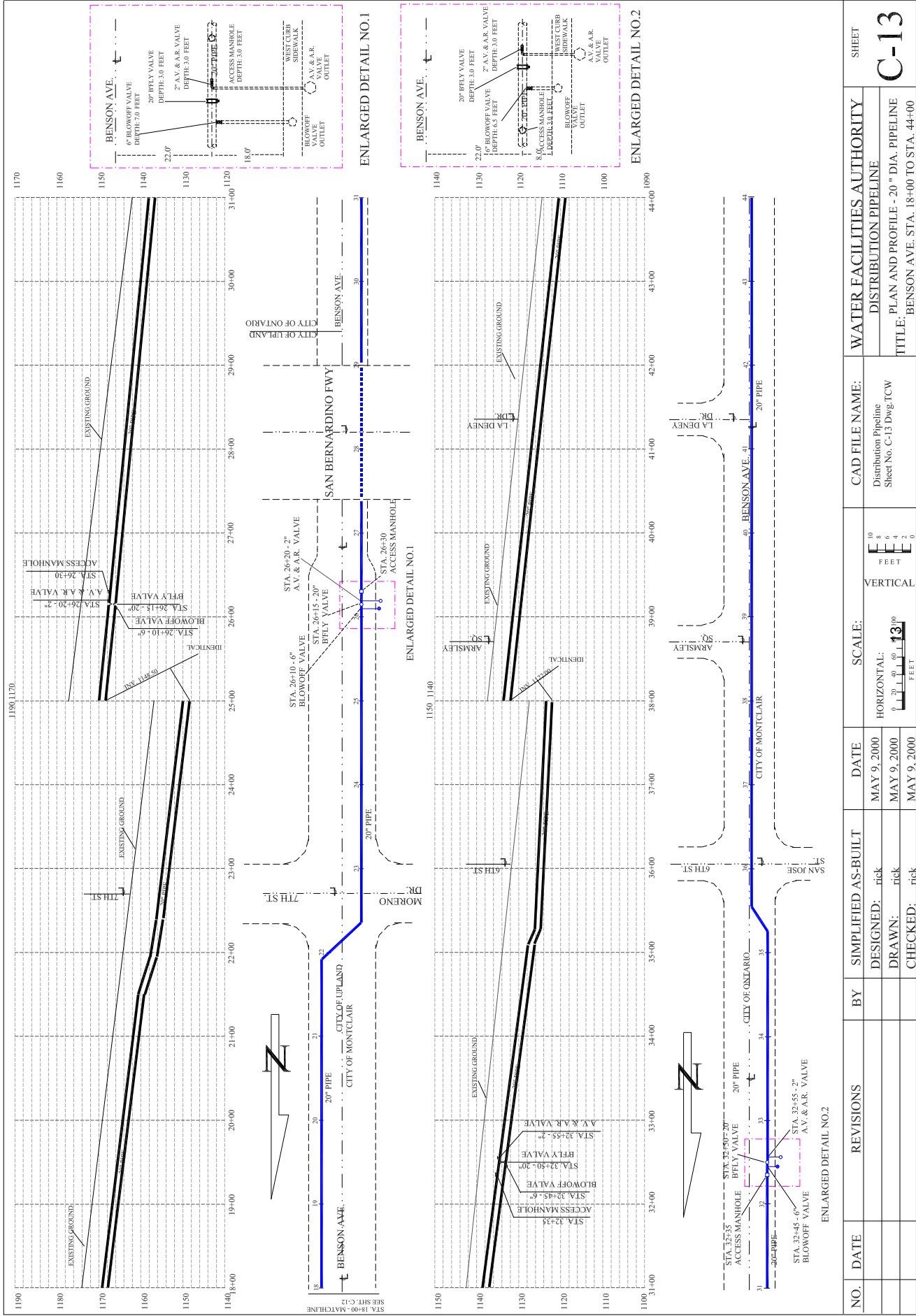
TORQUE RATINGS NOT AVAILABLE ON TECHNICAL SPECIFICATIONS.

[illegible]

REF. DWG.
DISTRIBUTION PIPELINE SHEET NO. C-13



NO.	DATE	REVISIONS	BY	SIMPLIFIED AS-BUILT	DATE	SCALE:	VERTICAL	CAD FILE NAME:	WATER FACILITIES AUTHORITY		SHEET
									DISTRIBUTION PIPELINE		
									PLAN AND PROFILE - LINE C-1 & C-2 PIPELINE		
				DESIGNED: rick	APR. 17, 2000	HORIZONTAL: 1"=12'		Distribution Pipeline Sheet No. C-12 Dwg.TCW	TITLE: BENSON AVE. STA. 6+00 TO STA. 18+00		C-12
				DRAWN: rick	APR. 17, 2000						
				CHECKED: rick	APR. 17, 2000						



<u>NO.</u>	<u>DESCRIPTION</u>	<u>MANUFACTURER</u>	<u>MODEL NO.</u>
2	BOLTS ASTM A307 GRADE B STANDARD ANSI B1.1 NUTS ASTM A563 ANSI B1.1 ALL BOLT & NUT SHALL BE HEAVY HEXAGONAL. (HEAD BOLT A307 B)	TRIPAC	
10-A TAPPING SLEEVES			
1	TAPPING SLEEVE	ROMAC FORD	FTS 419 STS-420 FTSS
11-A SERVICE SADDLES			
1	SERVICE SADDLE SINGLE STRAP 1" TO 2"	FORD ROMAC	S-90 101 B
2	SERVICE SADDLE DOUBLE STRAP 1" TO 2"	FORD JONES	202 B J-979
11-B GATE VALVES			
1	RESILIENT WEDGE NON-RISING STEM EPOXY COATED INTERIOR	AVK M&H MUELLER AFC	
12-A PIPE SUPPORT SADDLES			
1	PIPELINE PRODUCTS		PS-100S PSG-100S
2	PIPE TECHNOLOGY AND PRODUCTS		FIG.46
3	CHRISTY'S		WT-GPS
13-A VAULT WITH ACCESS DOOR & LADDER			
1	PRECAST CONCRETE VAULT (VARIOUS SIZES) OPEN BOTTOM	BROOKS J&R EISEL	
2	ALUMINUM DUAL ACCESS DOORS, SPRING ASSISTED, COUNTER BALANCED WITH RECESSED INSET FOR PADLOCK	BILCO TYPE AD-JL	H-10 PARKWAY H-20 STREET
3	VAULT LADDER	BILCO TYPE PIPELINE PRODUCTS	

VALVES AND ACCESSORIES SPECIFICATIONS

A. General Requirements for Valves:

1. All valves of each type shall be the product of one manufacturer, and shall be listed on the OWNER's Approved Materials List.
2. All valves shall be epoxy lined and coated; and furnished with operators, handwheels, levers, or other suitable type wrench including handles as specified herein or as shown on the Drawings.
3. All threaded stem valves shall open by turning the valve stem counter-clockwise.
4. All valves and valve operators shall have a nonbleeding shop coat.

B. Butterfly Valves, 6-inch and larger:

- a. General: Tight closing, rubber-seat type that fully complies with AWWA Standard C504-94. Provide Class 200B minimum unless a higher class is shown on the Drawings or required in the Specifications. Valves shall be bubble-tight at rated pressures in either direction. Where a buried installation is indicated on the Drawings, valves shall be suitable for buried service. Valve discs shall rotate 90 degrees from the full open position to the tight shut position. The 6-inch to 12-inch valves shall be Pratt or equal.
- b. Valve Body: Cast iron per ASTM A126, Class B. All valves shall have flanged connections with 150 pound flanges faced and drilled in accordance with ANSI B16.1.
- c. Valve Disc: Cast iron ASTM A48 or ductile iron ASTM A536 or fabricated steel with stainless steel seating edge. The valve disc shall be attached to the valve shaft by 18-8 stainless steel pins.
- d. Valve Shaft: Turned, ground and polished and constructed of Type 304 or Type 316 stainless steel. Shafts shall be two-piece, stub-type keyed for operator connection. Shaft diameters shall meet minimum requirements established by AWWA C504-94 for their class where applicable. The shaft shall be keyed for attachment to the disc. The valve shaft shall be marked and corresponding marks placed on the valve body to indicate whether the valve is open or closed.
- e. Valve Seat: Peroxide cured EPDM. Seats shall be a full 360 degrees without interruption. Valve seats shall be field adjustable around the full 360 degree circumference and replaceable without dismantling operator, disc or shaft and without removing the valve from the line.

The rubber seat shall be field replaceable. Seat shall be in the valve body, not on the disc.

- f. Valve Bearings: Sleeve-type bearings, corrosion resistant and self-lubricating. Bearing load shall not exceed 1/5 of the compressible strength of the bearing or shaft material.
- g. Finish: Factory lined with epoxy, minimum dry film thickness of 16 mils, and factory applied exterior finish of universal primer suitable to receive epoxy, coal tar epoxy, or alkyd base machinery enamel top coats. For valves for buried service, factory coat with coal tar epoxy, minimum dry film thickness of 16 mils.
- h. Manual Operators:
 - 1. Manual (non-buried service): Traveling nut, self-locking type. Equip with mechanical stop-limiting devices, adjustable in place in the field, to prevent overtravel of the disc in the closed and open positions. Provide handwheel or chainwheel in accordance with Paragraph 2.04 B. designed to produce the specified torque with a maximum pull of 80 lb. on the handwheel or chainwheel. Operator components shall withstand an input torque of 300 ft. lbs. at extreme operator positions without damage. Conform to AWWA C504-87. Provide exterior finish as specified for the valve body.
 - 2. Manual (buried service): Where a buried installation is indicated on the Drawings, provide operators specifically designed for buried service. Buried service operators shall conform to the requirements above for manual non-buried.
 - 3. Manufacturer's Identification: The manufacturer's name and catalog number shall be molded or stamped on the valve where it can be easily seen after the valve is installed.
 - 4. Submittals for Approval. The following submittals shall be furnished to be approved by the OWNER or its representative before the valve is installed (this article only applies to CONTRACTOR supplied material):
 - a) Certification from the valve manufacturer that both the valve and the operator conform to all requirements of AWWA C-504.
 - b) Certified drawings of valve and operator as specified in Section 3.2 of AWWA C-504.
 - c) Certified copies of reports of the torque rating of the manual operator as specified in Section 11.2.3 of AWWA C-504.